

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 25-02

NIELSEN & BAINBRIDGE, LLC v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC#011982), EVERGREEN MARINE CORPORATION (TAIWAN) LTD., EVERGREEN MARINE (UK) LIMITED, ITALIA MARITTIMA SpA, EVERGREEN MARINE (HONG KONG) LTD., EVERGREEN MARINE (SINGAPORE) PTE. LTD., AND YANG MING MARINE TRANSPORT CORPORATION

REVISED THIRD JOINT MOTION TO EXTEND DEADLINES

Complainant Nielsen & Bainbridge, LLC (“NBG” or “Complainant”) and Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Ltd., Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. (collectively, “Evergreen”), and Yang Ming Marine Transport Corporation (“Yang Ming” and, with Evergreen, the “Respondents”) (NBG, together with Respondents, the “Parties”), by their respective undersigned counsel, and pursuant to 46 C.F.R. Sections 502.69 and 502.102(a) and the Presiding Officer’s July 14, 2026, Order to Resubmit Third Joint Motion to Extend Deadlines (the “July 14 Order”), hereby file this Revised Third Joint Motion to Extend Deadlines (“Motion”) and in support thereof state that good cause for the requested extension exists, as follows:

I. The Current Schedule and the July 14 Order

1. On May 15, 2026, the Presiding Officer entered the Second Amended Scheduling Order with the following deadlines relevant to this Motion:

EVENT	CURRENT DEADLINE
Complete depositions of fact witnesses	July 20, 2026

Disclosure of initial expert reports	July 29, 2026
Last day to serve interrogatories, requests for admission, and RFPs	August 3, 2026
Disclosure of rebuttal expert reports	August 20, 2026
Complete expert depositions	September 1, 2026
Close of discovery	September 1, 2026
Complainant's initial brief, proposed findings of fact, appendix	September 29, 2026
Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	October 27, 2026
Complainant's reply and responses to proposed findings of fact	November 10, 2026

2. On July 13, 2026, the Parties jointly moved to extend the remaining deadlines by 60 days. In the July 14 Order, the Presiding Officer directed the Parties to resubmit their motion for an extension of the scheduling order that does not extend briefing beyond December 8, 2026, and that provides detail regarding what the Parties have done to narrow the issues, how many depositions have been scheduled, and for what dates. July 14 Order at 2.

3. This Motion responds to each of those directives.¹ The Parties have substantially reduced their request: rather than the 60-day extension previously sought, the Parties now request a 37-day extension of the deadline to complete fact depositions (from July 20, 2026, to August 26, 2026), with compressed periods for expert discovery and briefing so that all briefing concludes on December 8, 2026—within the limit set by the July 14 Order. As detailed below, the Parties identify each deposition that has been completed or scheduled and the dates thereof, explain with specificity why the current July 20, 2026, deadline cannot be met, and describe the concrete steps the Parties have taken to narrow the issues between them.

II. Detailed Statement of Good Cause

¹ As directed by the July 14 Order, the Parties correct the following errors in the third motion: Respondents identified their proposed Complainant witnesses on June 15, 2026 (not June 15, 2024); Complainant identified its initial list of Respondent witnesses on June 26, 2026 (not July 26, 2026); and the operative scheduling order is the Second Amended Scheduling Order entered May 15, 2026 (not April 10, 2026). July 14 Order at 2 n.1.

A. Depositions Completed and Scheduled

4. Respondents have identified four former NBG employees as fact witnesses: Panadda White, Albert Josiah, Brittany Withers, and Diana Castro for depositions, though have discussed narrowing this list to just Mr. Josiah and one other employee. In addition, Bradley Scher, NBG's Plan Administrator will serve as the corporate deponent. Complainant identified fifteen Respondent witnesses: from Yang Ming, Andrie Baker, Brian Chen, Chris Cobb, Michael Collins, Jeff Hall, Michael Wu, Greg Krueger, Michael Crosby, Karen Tsai, and Winston Yeh and from Evergreen, Hunter Bailey, Bill Carlson, William "Billy Lipper", Billy Chen and Rodney Bledsoe.

5. Of the five witnesses noticed by Respondents, one is scheduled for a date certain, and the rest are pending scheduling:

a. Albert Josiah is scheduled to be deposed on August 18, 2026. Mr. Josiah is out of the country until after the first week of August, after which he has obligations to his current employer. His appearance requires a subpoena, and Complainant will assist Respondents' counsel with that subpoena as needed.

b. Corporate deponent Bradley Scher is scheduled to be deposed towards the end of the deposition period and after fact witness depositions may conclude to best establish the record. Mr. Scher is traveling extensively throughout the month of July, including meeting with Complainant's counsel from July 29-30, August 4th, and attending a deposition on August 5th to prepare for a corporate deposition in case FMC 25-31.

6. The three remaining witnesses, all of whom are former employees of NBG, noticed by Respondents each require a subpoena to appear. Complainant has attempted to reach Brittany Withers through multiple telephone calls and emails without success; because Ms. Withers is not within Complainant's control, her appearance will require a subpoena, and Complainant will assist

Respondents' counsel with that subpoena as needed. Both Panadda White and Diana Castro require a subpoena to appear on account of their employment, and Complainant will likewise assist Respondents' counsel with those subpoenas as needed. Complainant's counsel is in touch with Ms. White and Ms. Castro due to their being deposed in the case FMC 25-31 on July 16, 24, and 30. The Parties are working to schedule remaining Complainant witness depositions promptly upon service of the subpoenas. Complainant has provided Respondents' counsel with last known addresses for all former NBG employee witnesses requested for deposition.

7. With respect to the witnesses noticed by Complainant, listed above, three Yang Ming witnesses are located either in the People's Republic of China or in Taiwan, to wit, Messrs. M. Wu, B. Chen and W. Yeh. Presently, their depositions and attendance of their counsel in Taiwan, which they request, is being coordinated for the second week of August. Additionally, it is noted that of the four fact witnesses requested by Respondents, each Respondent is independently noticing each witness. While the two Respondents have the same counsel each witness is involved in thousands of documents and different facts for each Respondent. Thus, one day for examination by each Respondent of each of the former employees of Complainant, save for Albert Josiah, who is considered to have more limited and overlapping evidence allowing for one day for all testimony, is needed to prepare for direct and cross-examination of each of the other three witness; essentially making a total of seven witnesses to be deposed by the two Respondents. Of the other witnesses requested by the Complainant three of the named Yang Ming witnesses are no longer in its employment, Michael Collins, Jeff Hall, Karen Tsai and one witness, Hunter Bailey, is no longer employed by Evergreen. All such witnesses will need to be subpoenaed, and last known addresses and telephone numbers have been provided Complainant. The respective Respondents will assist the Complainant as needed with the witnesses to the extent possible. The

balance of witnesses from the two Respondents, specifically Andrie Baker, Chris Cobb, Greg Krueger, and Michael Crosby, for Yang Ming and Bill Carlson, William “Billy Lipper”, Billy Chen and Rodney Bledsoe for Evergreen are located within the US. All of their availability for the final two weeks of August, including working with the witnesses existing vacation plans, is presently being coordinated for testimony in each Respondent’s corporate offices in New Jersey, with the anticipation that any open dates earlier may be used if agreeable to Complainant. Subpoenas for the witnesses sought by the Respondents were presented to the Court on July 16, 2026.

B. Detailed Statement of Why the Current Deadline Cannot Be Met

8. The July 20, 2026, deadline to complete fact depositions cannot be met for reasons specific to the identified witnesses, most of whom are former employees no longer within any Party’s control. Mr. Josiah is out of the country until after the first week of August and thereafter is constrained by the obligations of his current employment; August 18, 2026, is the earliest date on which he can appear, and no diligence by the Parties can advance a witness’s return to the country. Ms. Withers has not responded to multiple telephone calls and emails, and Ms. White and Ms. Castro cannot appear absent a subpoena. Several depositions accordingly require the service of, and a reasonable opportunity to respond to, subpoenas, which Respondents’ counsel intends to submit as soon as possible to the court. These constraints exist despite the Parties’ diligence: the Parties met and conferred on July 9, 2026 and then further on July 15, 2026 regarding witness outreach and scheduling, and secured dates certain for two additional witnesses. Complainant’s counsel also received the last known addresses for five Respondent witnesses and has drafted subpoenas and submitted them to the Presiding Officer as of the filing of this Motion.

9. The requested August 26, 2026, deadline is the earliest practicable date by which the remaining fact depositions can be completed. The latest deposition now scheduled will occur on August 18, 2026, and the requested deadline preserves a short period thereafter to complete the depositions of Ms. Withers, Ms. White, and Ms. Castro following subpoena service, together with the remaining depositions of Respondents' witnesses and Complainant's corporate designee.

C. What the Parties Have Done to Narrow the Issues

10. The Parties have materially narrowed the scope of the case since the Second Amended Scheduling Order issued. First, the Parties have discussed reducing the number of fact depositions and will continue to do so through additional document discovery review. While the Parties recognize the need to maintain the discovery schedules and deadlines, the significant volume of document discovery is requiring hours of attorney review each week, in order to understand which witnesses and what exhibits are going to provide the most useful testimony to the core matters of this case. Complainant has a team of six attorneys and one paralegal splitting daily review of key documents produced by Respondents, as identified by keyword search, which is a significant effort to complete the diligent effort required in a timely manner. Respondents have a similar number of company employees, attorneys and data searching knowledgeable individuals reviewing the documents produced in discovery, employing all available data reviewing technologies offered by their ESI vendors.

11. Next, the Parties have agreed to stipulate to relevant facts gathered from discovery in previous litigations against Yang Ming and Evergreen, thereby narrowing the issues and reducing the scope of fact testimony required in this proceeding. Complainant is drafting a set of facts to help identify the parties and core issues of the case that may be stipulated to between the Parties. The Parties are continuing to confer and work cooperatively to identify additional facts

not in dispute to which they can stipulate, consistent with the guidance in the Second Amended Scheduling Order.

D. Expert Discovery

12. The Parties intend to offer expert testimony in this proceeding. The proposed schedule therefore commits to firm expert deadlines: initial expert reports will be disclosed by September 11, 2026; rebuttal expert reports by September 24, 2026; it being unworkable to have experts prepare rebuttal reports to unseen initial expert reports in less time. Expert depositions will be completed by October 2, 2026. The proposed schedule compresses the total expert-discovery period from approximately five weeks under the current schedule to three weeks, so that the additional time requested is devoted principally to completing fact witness testimony.

E. The Requested Extension Is Limited and Complies with the July 14 Order

13. Rule 102(a) of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause."

14. Good cause exists here for the limited extension requested. The specific witness constraints described above—a witness abroad until mid-August, a witness unavailable until August 5, and two witnesses who can be compelled to appear only by subpoena—make completion of fact depositions by July 20, 2026, impossible notwithstanding the Parties' diligence. The Parties have tailored their request accordingly: the proposed schedule extends the fact deposition deadline by 37 days rather than the 60 days previously requested, extends the final briefing deadline by only 28 days (from November 10, 2026, to December 8, 2026), and concludes all briefing on December 8, 2026, in compliance with the July 14 Order.

15. The Parties do not anticipate seeking any further extension of the schedule and will continue to stipulate to undisputed facts, limit depositions, promptly resolve any discovery disputes, and facilitate consent to email service of subpoenas and the provision of witness contact information, where available.

III. Conclusion

16. The Parties respectfully submit that the limited extension requested is necessary to allow the Parties a fair opportunity to complete the remaining fact depositions—several of which cannot occur before August 5 and August 18, 2026, for the witness-specific reasons stated above—and to complete the compressed expert discovery and briefing that follow. The Parties therefore jointly request the following amended schedule, under which all briefing concludes on December 8, 2026:

EVENT	NEW DEADLINE
Complete depositions of fact witnesses	August 26, 2026
Disclosure of initial expert reports	September 11, 2026
Last day to serve interrogatories, requests for admission, and RFPs	September 11, 2026
Disclosure of rebuttal expert reports	September 24, 2026
Complete expert depositions	October 2, 2026
Close of discovery	October 2, 2026
Complainant's initial brief, proposed findings of fact, appendix	October 23, 2026
Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	November 20, 2026
Complainant's reply and responses to proposed findings of fact	December 8, 2026

17. Pursuant to 46 C.F.R. Section 502.71(a), counsel for Complainant and counsel for Respondents have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the area of disagreement. The Parties each agree to the relief requested in this Motion.

WHEREFORE, the Parties jointly pray their Joint Motion to Extend Deadlines be granted.

Dated: July 17, 2026

Respectfully submitted,

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